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SECRET

C.P.(50) 276

COPY NO. 32

17TH NOVEMBER, 1950

CABINET

FORMOSA

Memorandum by the Secretary of State for Foreign Affairs

The Cabinet decided, at their meeting on 13th November (C.M.(50) 73rd Conclusions, Minute 2), that we should consider policy in regard to Formosa in advance of the discussions at Lake Success.

2. A brief factual account of the events leading up to the present position is attached at Annex A.

3. From this account it will be seen that Formosa is due to be discussed both in the Security Council and in the Assembly. The issue in the Security Council is the Chinese complaint against "United States aggression against Formosa". The issue in the Assembly is consideration of the general problem of the future of Formosa, for which I have been pressing for some time. It is intended in this connection to table a Resolution in the preparation of which the United States and Commenwealth Governments have been associated.

4. I had hoped that the Assembly Resolution would have been disposed of before discussions began in the Council, but - largely on account of the delaying tactics of the United States representatives - this has not been possible. We do not yet know when the Assembly Resolution will be tabled, but the discussions in the Security Council should begin as soon as the Chinese delegation arrive. This is not likely to be earlier than 24th November.

OBJECTIVES

5. (a) to avoid involvement in a dispute between the Americans and the Chinese;

(b) to provide an outlet for the expression of the views of the Central People's Government of China;

(c) for these reasons, to set up machinery under United Nations auspices which will enable the problem to be discussed in a calmer atmosphere, aiming at discussion of possible solutions in a few months' time;

(d) meanwhile, to ensure that there is no attempt to settle the Formosan issue by force. This implies that Formosa shall not itself be attacked, and that it shall not be used as a base of operations against the Chinese.

6. It is, of course, necessary to bear in mind the Cairo Declaration and previous indications of the attitude of His Majesty's Government, such as statements in the House on the status and future of Formosa.

My colleagues will recall that in C.P.(50) 194, dated 31st August, I said:

> "There is unfortunately no clear-cut solution of this complex problem and our endeavour must be to find a formula which seems likely to command the widest possible measure of support among members of the United Nations, particularly the Asian members."

7. I invite my colleagues to agree -

(a) that the United Kingdom representative in the Security Council should confine himself initially to stating the general desire of His Majesty's Government to see a peaceful solution of the Formosan problem;

(b) that further action should be decided in the light of the course taken by the discussions in both the Security Council and the General Assembly;

(c) that the United Kingdom delegate in the General Assembly should co-sponsor the proposed Resolution (Annex D), and exercise where possible a moderating influence on the course of the debate.

E.B.

Foreign Office, S.W.1,

17TH NOVEMBER, 1950.

ANNEX A

BACKGROUND TO THE PROBLEM

Formosa was Chinese before it was ceded to Japan by the Treaty of Shimonoseki after the Sino-Japanese War of 1894-95. The Cairo Declaration, reaffirmed at Potsdam, announced that it would be restored to China; and the island was allowed to pass under Chinese administration after the Japanese surrender. The island is still de jure a part of Japan.

2. After the Chinese Nationalists had been expelled from the mainland, they maintained their hold on Formosa. From the island, they carried out air raids on the mainland, and instituted a form of blockade by sea. When hostilities began in Korea, President Truman declared his intention of "neutralising" Formosa, with the object of preventing the spread of hostilities. By this, he meant that the United States Seventh Fleet would ensure that Chinese Communist forces did not try to invade the island, while pressure would be exerted on the Nationalists to stop their air raids on the mainland and their maritime blockade. Apart from a number of minor incidents over shipping proceeding to China ports, these aims have so far been achieved.

3. Consideration in the United Nations

On 24th August, Chou En-lai, Foreign Minister of the Central People's Government, sent to the Secretary-General and the President of the Security Council a telegram complaining of "United States aggression against Formosa" (Annex B). A letter from the United States representative on the Security Council to the Secretary-General of the United Nations refuting these charges was circulated to members of the Security Council on 25th August (Annex C). On 29th August, the Security Council decided, in spite of the objections raised by the Chinese (Nationalist) representative, to include this complaint in its agenda. Other more urgent items then on the agenda (e.g. Korea) were nevertheless to be dealt with first. The Council also declined to invite representatives from the Central People's Government until the question of Formosa had come up for consideration. The Chinese complaint was eventually considered in the Security Council on 26th, 28th and 29th September. By that time, the United States had already formally requested that the question of Formosa be included in the General Assembly's Agenda as an important and urgent item. The United States explanatory memorandum on this item contained the following statement:

> "The United States considers that the General Assembly could make an important contribution towards carrying out the purposes and principles of the United Nations in the Pacific area if it should study the general situation with respect to Formosa with a view to formulating appropriate recommendations."

The point was made during discussion in the Council that it would be inconvenient if the Assembly and the Council were to discuss simultaneously these parallel questions, perhaps arriving at different conclusions. A resolution was adopted by the Council on 29th September deciding that consideration of the Chinese complaint should be deferred until after 15th November, when representatives of the Central People's Government

should be invited to state their case. In thus deferring consideration by the Council it was clearly contemplated that the Assembly would by this date have reached some conclusion on the general question of the future of the island.

4. On the wider question before the Assembly of the future of Formosa, His Majesty's Government took the initiative two months ago by suggesting a draft resolution recounting briefly the facts of the situation and proposing the establishment of a United Nations Commission to study the problem and submit a report to the General Assembly. As a result of discussions between the United Kingdom delegation, State Department representatives and Commonwealth delegations, the broadest measure of agreement possible under the circumstances has been reached on the form of this Assembly resolution. The latest text of the resolution is attached at Annex D, but it is hoped that paragraph 3 may be deleted, or at least redrafted. This paragraph, besides being badly worded, might be considered to imply too great a degree of United Nations commitment in Formosa.

5. During the discussions, it became clear that the Americans had modified their position and were no longer anxious for very early consideration by the Assembly. In spite of the efforts of our Delegation to have the item taken earlier in the Assembly, discussion of it has been delayed and latest indications are that it will not be taken up until next week at the earliest.

6. Meanwhile the Central People's Government have been taking the line in public utterances that the question of the ultimate fate of Formosa is an internal matter, with which the United Nations has no business to interfere. Again, when informing the Secretary-General on 4th November of his Government's unwillingness to accept the Security Council's invitation to send representatives when the Council considered the special report of the Unified Command on the question of Chinese intervention in Korea, Chon En-lai suggested that discussion of the question of "armed intervention in Korea by the United States Government" should be combined with discussion of their complaint regarding "American aggression against Formosa..

ANNEX B

CABLEGRAM DATED 24TH AUGUST, 1950, FROM THE MINISTER FOR FOREIGN AFFAIRS OF THE CENTRAL PEOPLE'S GOVERNMENT OF THE PEOPLE'S REPUBLIC OF CHINA ADDRESSED TO THE PRESIDENT OF THE SECURITY COUNCIL

On 27 June this year, President Truman of the United States of America announced the decision of the United States Government to prevent with armed forces the liberation of Taiwan by the Chinese People's Liberation Army. Meanwhile, the United States Seventh Fleet moved towards the Straits of Taiwan, followed by the arrival in Taiwan of contingents of the United States Air Force, in an open encroachment on the territory of the People's Republic of China. This action on the part of the United States Government is a direct armed aggression on the territory of China, and a total violation of the United Nations Charter.

Taiwan is an integral part of China. This is not only a fact based on history, confirmed by the situation since the surrender of Japan, but it is also stipulated in the Cairo Declaration of 1943 and the Potsdam communique of 1945 as binding international agreements which the United States Government has pledged itself to respect and observe.

The people of China cannot tolerate this action of armed aggression by the United States Government on the territory of China, and are determined to liberate from the tentacles of the United States aggressors Taiwan and all other territories belonging to China. On behalf ot the Central People's Government of the People's Republic of China, I now raise to the United Nations Security Council the accusation and propose that for the maintenance of international peace and security and for the upholding of the dignity of the United Nations Charter, the United Nations Security Council is obliged by its inalienable duties to condemn the United States Government for its criminal act in the armed invasion of the territory of China, and to take immediate measures to bring about the complete withdrawal of all the United States armed invading forces from Taiwan and from other territories belonging to China.

ANNEX C

LETTER DATED 25TH AUGUST, 1950, FROM THE UNITED STATES REPRESENTATIVE ON THE SECURITY COUNCIL TO THE SECRETARY-GENERAL OF THE UNITED NATIONS

There has been circulated to members of the Security Council a paper which charges the United States with aggression against Formosa. The paper asks the Security Council to consider the question of Formosa.

The United States Government does not intend to discuss at this time this paper or the ridiculous falsehoods which it contains. It does wish to take this occasion to make a further statement about the Formosan question.

On June 27 the United States Representative read at the Security Council the following statement of the President of the United States:

> "In Korea the Government forces, which were armed to prevent border raids and to preserve internal security, were attacked by invading forces from North Korea. The Security Council of the United Nations called upon the invading troops to cease hostilities and to withdraw to the 38th parallel. This they have not done but, on the contrary, have pressed the attack. The Security Council called upon all Members of the United Nations to render every assistance to the United Nations in the execution of this resolution.
>
> In these circumstances, I have ordered United States air and sea forces to give the Korean Government troops cover and support.
>
> The attack upon Korea makes it plain beyond all doubt that Communism has passed beyond the use of subversion to conquer independent nations, and will now use armed invasion and war. It has defied the orders of the Security Council of the United Nations, issued to preserve international peace and security. In these circumstances, the occupation of Formosa by communist forces would be a direct threat to the security of the Pacific area and to United States forces performing their lawful and necessary functions in that area.
>
> Accordingly, I have ordered the Seventh Fleet to prevent any attack on Formosa. As a corollary of this action, I am calling upon the Chinese Government on Formosa to cease all air and sea operations against the mainland. The Seventh Fleet will see that this is done. The determination of the future status of Formosa must await the restoration of security in the Pacific, a peace settlement with Japan, or consideration by the United Nations.
>
> I have also directed that United States forces in the Philippines be strengthened and that military assistance to the Philippine Government be accelerated.
>
> I have similarly directed acceleration in the furnishing of military assistance to the forces of France and the associated States in Indochina and the dispatch of a military mission to provide close working relations with those forces.

I know that all Members of the United Nations will consider carefully the consequences of this latest aggression in Korea in defiance of the Charter of the United Nations. A return to the rule of force in international affairs would have far-reaching effects. The United States will continue to uphold the rule of law.

I have instructed Ambassador Austin, as the Representative of the United States to the Security Council, to report these steps to the Council."

Since then, the President of the United States on July 19 made the following declaration in a message to the Congress:

"In addition to the direct military effort we and other Members of the United Nations are making in Korea, the outbreak of aggression there requires us to consider its implications for peace throughout the world. The attack upon the Republic of Korea makes it plain beyond all doubt that the international Communist movement is prepared to use armed invasion to conquer independent nations. We must, therefore, recognize the possibility that armed aggression may take place in other areas.

In view of this, I have already directed that United States forces in support of the Philippines be strengthened and that military assistance be speeded up to the Philippine Government and to the Associated States of Indochina, and to the forces of France in Indochina. I have also ordered the United States Seventh Fleet to prevent any attack upon Formosa, and I have requested the Chinese Government on Formosa to cease all air and sea operations against the mainland. These steps were at once reported to the United Nations Security Council.

Our action in regard to Formosa was a matter of elementary security. The peace and stability of the Pacific area had been violently disturbed by the attack on Korea. Attacks elsewhere in the Pacific area would have enlarged the Korean crisis, thereby rendering much more difficult the carrying out of our obligations to the United Nations in Korea.

In order that there may be no doubt in any quarter about our intentions regarding Formosa, I wish to state that the United States has no territorial ambitions whatever concerning that island, nor do we seek for ourselves any special position or privilege on Formosa. The present military neutralization of Formosa is without prejudice to political questions affecting that island. Our desire is that Formosa not become embroiled in hostilities disturbing to the peace of the Pacific and that all questions affecting Formosa be settled by peaceful means as envisaged in the Charter of the United Nations. With peace reestablished, even the most complex political questions are susceptible of solution. In the presence of brutal and unprovoked aggression, however, some of these questions may have to be held in abeyance in the interest of the essential security of all."

These statements and the facts to which they related make perfectly clear certain fundamental points which the people of the world will have clearly in mind:

1. The United States has not encroached on the territory of China, nor has the United States taken aggressive action against China.

2. The action of the United States in regard to Formosa was taken at a time when that Island was the scene of conflict with the mainland. More serious conflict was threatened by the public declaration of the Chinese Communist authorities. Such conflict would have threatened the security of the United Nations Forces operating in Korea under the mandate of the Security Council to repel the aggression on the Republic of Korea. They threatened to extend the conflict through the Pacific area.

3. The action of the United States was an impartial neutralizing action addressed both to the forces on Formosa and to those on the mainland. It was an action designed to keep the peace and was, therefore, in full accord with the spirit of the Charter of the Unied Nations. As President Truman has solemnly declared, we have no designs on Formosa, and our action was not inspired by any desire to acquire a special position for the United States.

4. The action of the United States was expressly stated to be without prejudice to the future political settlement of the status of the Island. The actual status of the Island is that it is territory taken from Japan by the victory of the Allied Forces in the Pacific. Like other such territories, its legal status cannot be fixed until there is international action to determine its future. The Chinese Government was asked by the Allies to take the surrender of the Japanese forces on the Island. That is the reason the Chinese are there now.

5. The United States has a record through history of friendship for the Chinese people. We still feel the friendship and know that millions of Chinese reciprocate it. We took the lead with others in the last United Nations General Assembly to secure approval of a resolution on the integrity of China. Only the Union of the Soviet Socialist Republics and its satellites did not approve that resolution.

6. The United States would welcome United Nations consideration of the case of Formosa. We would approve full United Nations investigation here or on the spot. We believe that United Nations consideration would contribute to a peaceful, rather than a forcible solution of that problem.

7. We do not believe that the Security Council need be or will be diverted from its consideration of the aggression against the Republic of Korea. There was a breach of the peace in Korea. The aggressor attacked, has been condemned, and the combined forces of the United Nations are now in battle to repel the aggression. Formoss is now at peace and will remain so unless someone resorts to force. If the Security Council wishes to study the question of Formosa we shall support and assist that study. Meanwhile, the President of the Security Council should discharge the duties of his office and get on with the item on the agenda which is the Complaint of Aggression upon the Republic of Korea, and, specifically, the recognition of the right of the Korean Ambassador to take his seat and the vote on the United States resolution for the localization of the Korean conflict.

I request that this letter be circulated to members of the Security Council.

ANNEX D

PROPOSED ASSEMBLY RESOLUTION

Noting that the signatories to the Cairo declaration declared it to be one of their purposes that certain of the territories formerly held by Japan, including Formosa and the Pescadores, should be restored to the Republic of China, and that no formal act restoring to China sovereignty over the territory has yet occurred;

Recognising that two parties at present claim the right to administer Formosa, that there have been threats of armed attack on Formosa from the Chinese mainland and that Formosa has been used as a base for attacks on the Chinese mainland, that attempts to settle the dispute by force would heighten international tension and be prejudicial to the maintenance of international peace and security in the area as well as prejudicial to the interests of the people of Formosa; and further

Recognising that the foregoing considerations are questions as to the obligations and responsibilities of Members under the Charter;

Decides to establish a Commission composed of the representatives of the following States which, bearing in mind the considerations set forth in the preceding paragraphs, should study the problem and submit a report to the General Assembly containing recommendations for the future of Formosa and the Pescadores. The Commission should consult all Governments, authorities and parties concerned;

Recommends that, pending the study by the Commission and adoption by the General Assembly of recommendations concerning this problem there be no attempt to change the status of Formosa by force and that there be neither

(a) armed attack on Formosa from the Chinese mainland nor

(b) armed attack on the Chinese mainland from Formosa;

Requests all Governments and authorities concerned to act in conformity with the recommendation in the preceding paragraph and render every possible assistance to the Commission in the performance of its tasks.